Law and Political Science

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1. Purpose and Question of the Investigation

Figure 1: Law and Political Science —

This report was prepared to answer the following question.

> Do the theories of this academic domain correspond structurally to the five-stage model, Field -> Wave -> Edge -> Vortex -> Bundle?

Law and political science are fields centered on the generation and legitimation of norms and institutions, and they show especially clear structural correspondence with the five stages. In particular, Edge is made concrete here more richly than anywhere else as procedural and institutional design. What is distinctive is that the grounds of order, legitimacy, power, and consent, act across stages rather than remaining localized within only one of them. This also connects with cases such as D17 creole formation, where power creates the Field itself.

This document is a report of findings. It is not a document intended to justify any particular theory. Places where correspondence is strong and places where reservation remains are described with the same level of restraint.

2. Method of Investigation

Objects and Selection Criteria

Ten theories or practical models were evaluated in this domain. Selection was guided by three criteria: (1) the theory explicitly treats processes of generation or transformation; (2) structural analysis is possible on the basis of primary texts or well-established secondary literature; and (3) the set allows comparison across different lineages within the domain.

Method of Evaluation

For each theory, the investigation first clarifies what the theory describes and then examines where correspondence with the five stages may be found. Judgments were made on the basis of textual concepts, concrete examples, connection between stages, presence or absence of circulation from Bundle to the next Field, and the risk of forced interpretation.

Criteria of Judgment

- **Strong structural correspondence**: The core concepts of the theory correspond concretely to multiple stages of the five-stage model, and the report can explain why.
- **Conditional correspondence**: Correspondence can be indicated, but interpretive reservation remains in the stage mapping.
- **No correspondence confirmed**: Partial resemblance is present, but the theory cannot be read naturally as a five-stage structure as a whole.

Limits of the Investigation

This investigation does not examine every work by each theorist exhaustively. It focuses on the central concepts of major works and extracts structure at a level fine enough for comparison. As a result, some internal detail and some disagreements in the history of interpretation remain outside the present scope.

3. Overview of the Model

The five-stage model describes creative process through the following five stages.

Stage	Definition
Field	An undifferentiated state, an initial condition in which neither direction nor structure has yet been fixed
Wave	A stage of exploration in which multiple directions diverge and difference is amplified
Edge	A stage of tension in which opposing elements coexist without immediately converging into one side
Vortex	A stage in which a new coherence or order rises out of the tension
Bundle	A stage in which form is fixed and stabilizes as a reusable structure

This model is not a one-way straight line. It includes circulation in which Bundle becomes the condition for the next Field. The five stages are also better understood as a continuous spectrum than as rigid boxes. The model includes the hypothesis that the same structure may recur at different scales, from momentary thought to institutional formation and long historical change.

If discomfort remains at this point, that is itself an important part of the investigation. Readers can continue while holding onto that discomfort.

4. Results: Overall Picture

List of Theories Evaluated

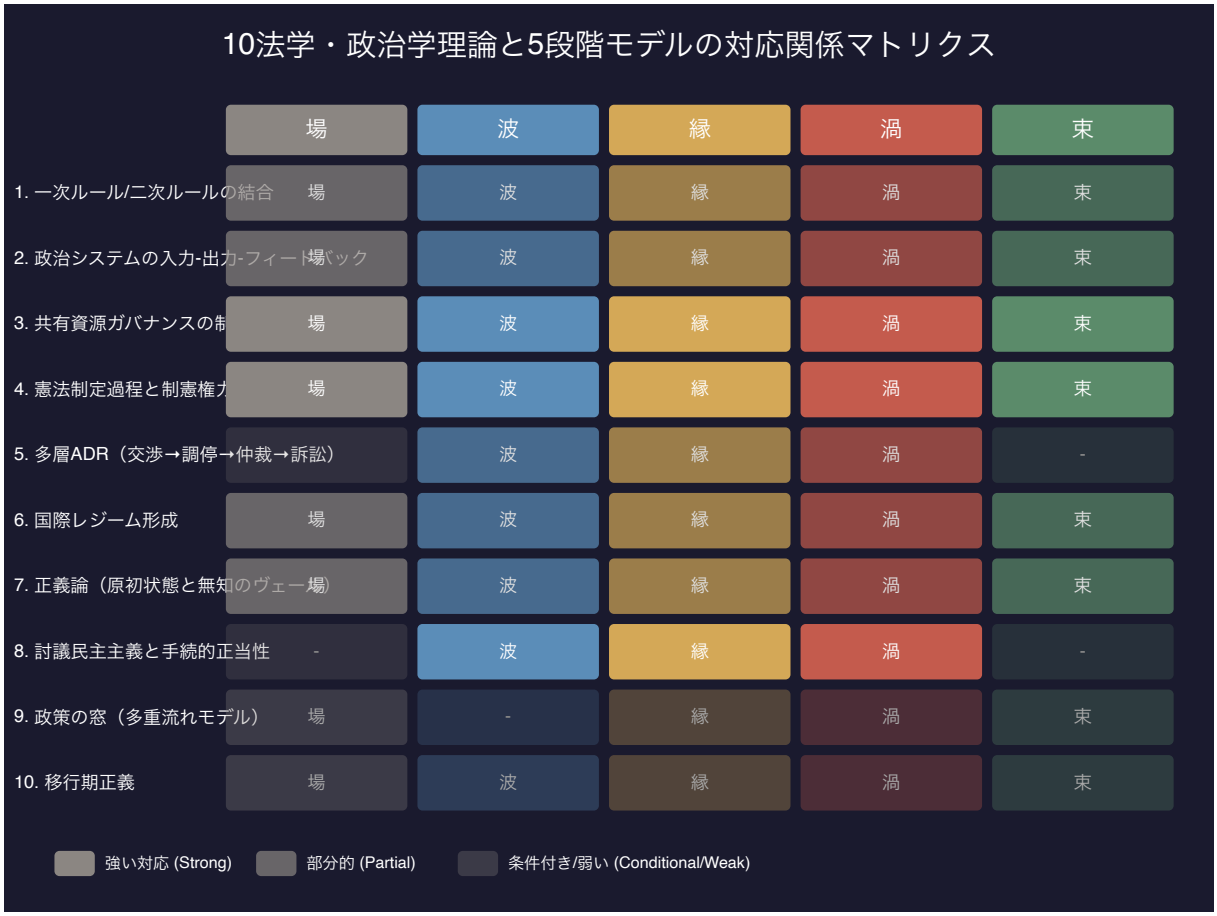

Figure 2: Law and Political Science — ×5

Theory	Proponent	Structural Correspondence
Hart, union of primary and secondary rules	Hart (1961)	Strong correspondence
Easton, political system input-output-feedback	Easton (1965)	Strong correspondence
Ostrom, institutional formation in common-pool resource governance	Ostrom (1990)	Strong correspondence
Constitution-making and constituent power	Sieyes (1789), Schmitt (1928), International IDEA (2011)	Strong correspondence
Multi-tier ADR, negotiation -> mediation -> arbitration -> litigation	UNCITRAL Mediation Rules (2021), Singapore Convention on Mediation (2018)	Strong correspondence
Krasner / Keohane, formation of international regimes	Krasner (1982), Keohane (1984)	Strong correspondence
Rawls, justice as fairness, original position and veil of ignorance	Rawls (1971)	Strong correspondence
Habermas, deliberative democracy and procedural legitimacy	Habermas (1992/1996)	Strong correspondence
Kingdon, policy window in the multiple-streams model of agenda setting	Kingdon (1984)	Strong correspondence
Transitional justice	Teitel (2000), ICTJ	Strong correspondence

All ten cases showed strong structural correspondence. None remained only conditional and none failed to show correspondence. As a whole, this domain shows a comparatively high density of correspondence with the five-stage model, though not all theories correspond in the same way. Some draw the conditions of Field in thick detail, while others describe the tension of Edge or the fixation of Bundle with particular precision.

What matters most is not the raw rate of correspondence, but which theory describes which stage in which vocabulary. Even within one domain of law and politics, different layers illuminate different moments of the five stages.

5. Results: Examination of Major Theories

5.1 Hart: The Union of Primary and Secondary Rules

Hart describes a legal system as a union of primary rules, rules imposing duties, and secondary rules, rules conferring powers of recognition, change, and adjudication. The rule of recognition is the metanorm identifying what counts as law, and thus the ultimate criterion of legal validity.

Coexisting customs and practices correspond to Field, a pre-legal society governed only by primary rules. Pressure toward clarification created by disputes and norm conflict corresponds to Wave, especially through the visibility of uncertainty, stasis, and inefficiency. Appearance of secondary rules through courts, legislatures, and administration corresponds to Edge, as institutionalization of the relational structure of recognition, change, and adjudication. The emergence of a self-identifying legal order through the rule of recognition corresponds to Vortex. Accumulation of precedent, legislation, and operation corresponds to Bundle.

Hart provides the analytic-philosophical foundation of legal order in D20. The rule of recognition can be read as a metanorm deciding what belongs inside Bundle itself. This makes Hart especially useful for thinking about the boundary of Bundle.

5.2 Easton: Input, Output, and Feedback in the Political System

Easton describes the political system as a feedback cycle in which demands and support from society enter as inputs, policy decisions appear as outputs, and those outputs then reshape later support and demands. The key to system maintenance is diffuse support, trust directed not toward a single policy but toward the system as such.

Latent dissatisfactions and expectations within society correspond to Field. Issue formation and the emergence of axes of conflict correspond to Wave. Adjustment of interests through parties, parliament, and bureaucracy corresponds to Edge as institutional channel and procedural design. Formation of decisions as policy packages corresponds to Vortex. Stabilized policy clusters that guide the direction of governance correspond to Bundle. Policy consequences then generate new demands and support, a clear Bundle -> Field return.

Easton provides one of the clearest formulations of the Bundle -> Field cycle in the whole domain. Diffuse support is especially important because it connects the durability of the system not to success of particular policies but to trust in the system itself.

5.3 Ostrom: Institutional Formation in the Governance of the Commons

Ostrom argues that common-pool resource governance cannot be reduced to the binary of state or market. User groups can create their own rules for monitoring, sanctioning, and dispute resolution. Her eight design principles include clear boundaries, congruence of appropriation and provision rules, collective-choice arrangements, monitoring, graduated sanctions, conflict-resolution mechanisms, recognition of self-organization, and nested enterprises.

A condition in which users depend on the resource but rules remain rough and incomplete corresponds to Field. Visibility of overuse and free-rider problems, the pressure associated with the tragedy of the commons, corresponds to Wave. Agreements on monitoring, boundary setting, and dispute resolution, that is, implementation of the eight design principles, correspond to Edge as self-design of relational structure. Emergence of a local institution as an effective governing unit corresponds to Vortex. Operational rule clusters shaping long-term resource management correspond to Bundle, which may later deteriorate and require redesign.

This is one of the strongest entries in D20. The eight design principles function almost as a design specification for Edge. Ostrom is therefore one of the clearest cases where Edge becomes operationally specifiable as institutional design.

5.4 Constitution-Making and Constituent Power

Constituent power is distinguished from constituted power, that is, from the power created by an already existing constitution. Constituent power is the originating force that creates

a constitutional order from outside the already constituted system. Schmitt defines it as the political will capable of deciding the concrete overall form of a political unity.

An undifferentiated political situation under crisis of legitimacy corresponds to Field. Conflict over the subject, limits, and source of constituent power corresponds to Wave. Design of constitutional procedure, through committees, assemblies, and public participation, corresponds to Edge as connection among heterogeneous actors together with definition of boundary conditions. Convergence into constitutional text and formal adoption corresponds to Vortex. Implementation, operation, amendment, and the formation of constitutional culture correspond to Bundle.

This is the only entry in D20 that treats the radical generation of Field itself. Constituent power is the force that creates order from outside the existing institutional frame, and thus corresponds to the moment in which Field arises from something closer to political nothingness.

5.5 Multi-Tier ADR: Negotiation, Mediation, Arbitration, Litigation

UNCITRAL mediation frameworks and the Singapore Convention position mediation within a broader structure of dispute resolution alongside arbitration and litigation. Mediation can be used at different stages of conflict, which means the structure is explicitly non-linear.

An unstructured state of dispute corresponds to Field. Visibility and escalation of conflict correspond to Wave. Multi-tier clauses, procedural agreement, and mediation as framing devices correspond to Edge, here understood as procedural design. Settlement agreement, arbitral award, or judicial decision correspond to Vortex. Enforcement, compliance, and institutionalization correspond to Bundle.

This is one of the clearest descriptions of Edge as procedural design. Each step from negotiation to mediation to arbitration to litigation can be read as a thickening of Edge. Because the primary sources explicitly describe non-linearity and insertion, the five stages should be read here as phases rather than as a strict line.

5.6 Krasner and Keohane: Formation of International Regimes

Krasner defines international regimes as sets of principles, norms, rules, and decision-making procedures around which actor expectations converge. Keohane adds that regimes help actors cope with transaction costs, uncertainty, and information problems.

A condition of issue-specific interdependence without formal institutionalization corresponds to Field. Visibility of crisis, externalities, and conflict of interest corresponds to Wave. Negotiation and formation of principles, norms, rules, and procedures correspond to Edge, indeed almost exactly to Krasner's own definition. Emergence of treaties and institutions corresponds to Vortex, as expectations converge into institutional form. Compliance, revision, and durability as practice correspond to Bundle.

This is the D20 entry describing the five stages at the scale of international order. The four elements of Krasner's definition can themselves be read as layered structure within Edge.

5.7 Rawls: Justice as Fairness, Original Position, and Veil of Ignorance

Rawls introduces the original position as a hypothetical situation for selecting principles of justice, and the veil of ignorance as the device that blocks knowledge of one's own social position, talents, or conception of the good, thereby making fair choice possible. The theory yields two principles of justice, equal basic liberties and the difference principle together with fair equality of opportunity.

The original position, a condition undifferentiated by personal attributes because of the veil of ignorance, corresponds to Field. Comparative pressure among candidate principles of justice corresponds to Wave. Reflective equilibrium, the mutual adjustment of principle and considered judgment, corresponds to Edge as coupling of theory and experience. Agreement on the two principles corresponds to Vortex. Institutional design of the basic structure corresponds to Bundle.

Rawls is one of the central texts of twentieth-century political philosophy, and gives one of the clearest cases where Edge is implemented as a carefully designed thought-experimental procedure.

5.8 Habermas: Deliberative Democracy and Procedural Legitimacy

Habermas argues that legitimacy in law derives from democratic deliberative procedure. The discourse principle holds that only those norms are valid that could gain the assent of all affected in practical discourse. The ideal speech situation is the condition under which all participants can take part on equal terms and without coercion.

Coexistence of plural opinions in the public sphere corresponds to Field. Tension between facticity and validity bringing issues into visibility corresponds to Wave. Exchange of reasons through deliberative procedure, approximating the ideal speech situation, corresponds to Edge as symmetrical relational structure among participants. Formation of agreement and justification of norms through discourse correspond to Vortex. Institutionalization in legal form corresponds to Bundle.

Habermas offers one of the clearest ideal-types of Edge. Equal participation, exclusion of coercion, and orientation toward agreement together form a design specification for an ideal procedural Edge.

5.9 Kingdon: Policy Windows and the Multiple-Streams Model

Kingdon describes agenda setting through three relatively independent streams, problem, policy, and politics. Policy change occurs when the streams come together at a policy window, which policy entrepreneurs then exploit.

The three streams existing separately correspond to Field. Focusing events, crisis, or political change that make the streams visible correspond to Wave. The policy window itself, temporary coupling of the three streams, corresponds to Edge as momentary joining of heterogeneous elements. Use of the window by policy entrepreneurs to push forward a policy corresponds to Vortex. Institutionalization of the resulting policy corresponds to Bundle.

This is the D20 entry that emphasizes most strongly the temporariness and contingency of Edge. Unlike theories describing more stable institutional Edge, Kingdon shows that Edge may sometimes appear only as a brief opening.

5.10 Transitional Justice

Transitional justice refers to the judicial and non-judicial measures by which societies emerging from authoritarian rule or conflict address massive past human-rights violations. The four usual pillars are criminal prosecution, truth-seeking, reparations, and institutional reform, including vetting.

Collapse of the old regime, dissolution of the previous Bundle, corresponds to Field. Visibility and documentation of past abuses through truth processes correspond to Wave. Procedural design of the four pillars corresponds to Edge. Formation of a new legal and social order corresponds to Vortex. Institutionalization of reform, reconciliation, and memory corresponds to Bundle.

This is the clearest D20 description of Bundle -> Field -> new Bundle. Where other entries describe generation of institutions, transitional justice describes rebuilding after the collapse of an older institutional order.

6. Cross-Domain Patterns

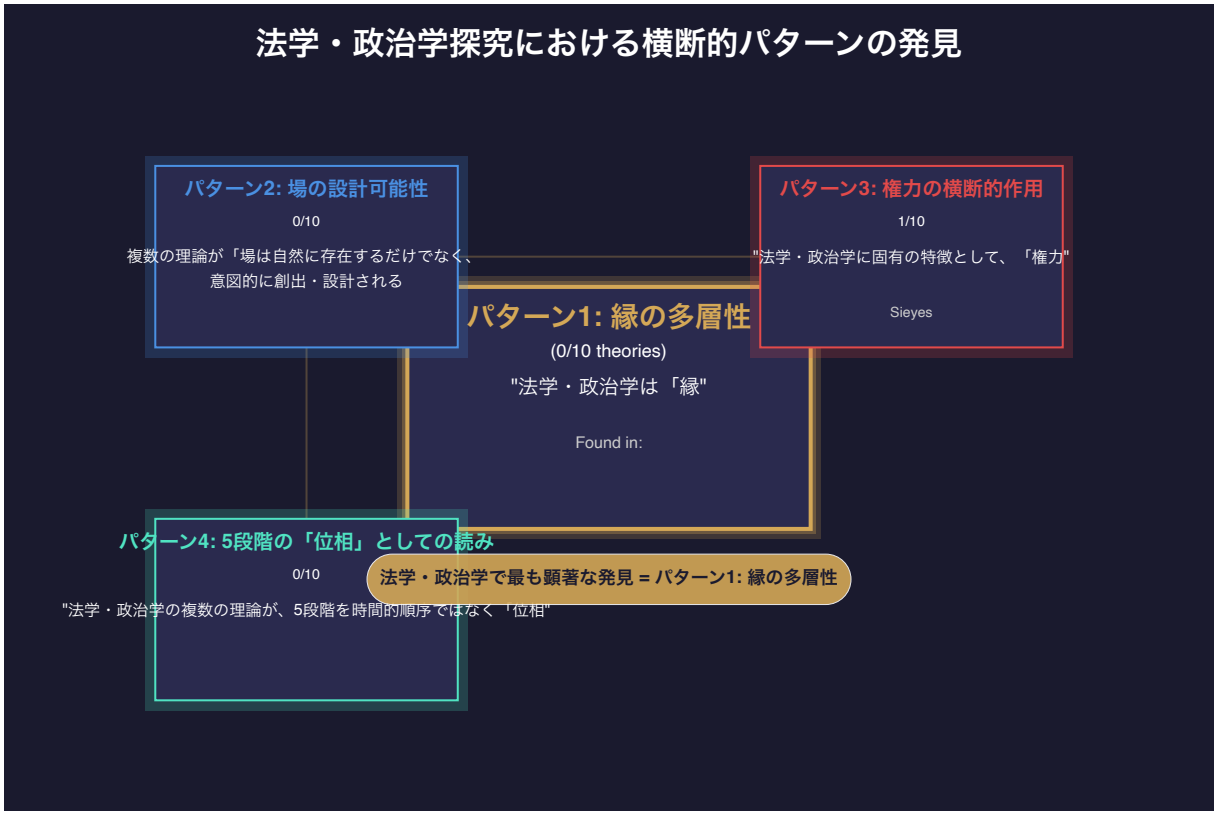

Figure 3: Law and Political Science —

First, Hart, Easton, and Ostrom all show that difference and conflict in this domain are not mere obstacles but conditions under which new order rises. This means that the transition from Edge to Vortex can be observed with particular richness in law and politics.

Second, constitution-making, multi-tier ADR, and international regime formation all show that generation is not a single isolated event. It includes formation of preconditions, amplification of tension, local ordering, stabilization, and later reconfiguration. This confirms that the five-stage model should be read here as temporal movement rather than as a static table.

What is equally important is that even where correspondence rates are high, the theories are not all saying the same thing. Some draw the conditions of Field in thick detail, others the tension of Edge, and still others the fixation of Bundle and the next cycle. That difference is part of what gives the domain its density.

7. Unresolved Questions

1. Are the correspondences identified here structures internal to the theories themselves, or structures extracted by the analyst?
2. How far can the structures confirmed in this domain be extended from explanation of particular cases toward a more general model of generation without losing the specificity of the objects?

3. Should the five stages be read as linear progression, or as circulation including multiple temporal layers and repetition? The degree to which return from Bundle to the next Field is made explicit differs considerably among the theories.
4. What becomes visible, and what is lost, when the domain's own vocabulary is translated into the general vocabulary of the five stages? The boundary between translatability and untranslatability is itself a major issue for future comparison.

8. Conclusion

In this re-examination of the domain, all ten theories showed strong structural correspondence. Hart's union of primary and secondary rules, Easton's political-system model, and Ostrom's account of common-pool resource governance stand out especially because they describe with particular density either the movement from Field to Edge or the transition from Edge to Vortex.

At the same time, the findings do not mean that exactly the same five stages appear in each theory without difference. The stages that stand out most strongly differ from theory to theory, and in some cases stage mapping still calls for reservation. What matters therefore is not simply the high rate of correspondence, but continuing comparison of which moment is being described in which vocabulary.

In that sense, this domain does not only support the five-stage model. It also places conditions on how the model itself should be read. The coexistence of theories that correspond thickly and theories that require caution is itself part of the value of comparative investigation.